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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23.10.2026

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THE HON'BLE MR.JUSTICE N.RAMESH

CRL.O.P.No.30856 of 2026

CNR: {HCMA012566252026}

G.Vasanth @ Vasanth Sena ..Petitioner

Vs

The State Rep. by, The Inspector of Police,
Cyber Crime, S-3, Meenambakkam Police Station,
Chennai-27.

..Respondent

PRAYER: To enlarge the Petitioner on bail in Cr.No.77 of 2026 pending investigation on the file of Inspector of Police, Cyber Crime, S-3, Meenambakkam Police Station, Chennai-27 and thus render justice.

For Petitioner : Mr.M.Selvam
For Respondent : Mrs.R.S.Indira,
Additional Public Prosecutor.

ORDER

The petitioner, who was arrested and remanded to judicial custody on 18.09.2026 for the alleged offences punishable under Sections 79 and 351(4) of the Bharatiya Nyaya Sanhita (BNS), 2023, Section 67A of the Information Technology (I.T.) Act read with Section 4 of the Tamil Nadu Prohibition of Harassment of Women (TNPHW) Act, in Crime No.77 of 2026 on the file of the respondent police, seeks bail.

2. The case of the prosecution is that the defacto complainant, a 20-year-old student, lodged a complaint alleging that the petitioner engaged in sending

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unwanted WhatsApp messages, making missed calls, and transmitting explicit communications through social media platforms from 08.12.2025 to 23.07.2026. Hence, the registration of the case against the petitioner.

3. The learned counsel appearing for the petitioner submitted that the petitioner is innocent of the allegations and has been falsely implicated. He further submitted that the petitioner and the defacto complainant were in a love affair, and the present complaint is the result of a subsequent misunderstanding between them. He added that the petitioner has been languishing in judicial custody since 18.09.2026 and that the electronic evidence has already been secured by the investigating agency.

4. The learned Additional Public Prosecutor appearing for the respondent state opposed the grant of bail, highlighting the prolonged nature of the cyber harassment targeted at a young student. He, however, admitted that the substantial part of the investigation is completed.

5. Hearing the learned counsel on either side and perusing the materials available on record, it appears that the dispute stems from a soured personal relationship between the parties. Considering the facts and circumstances of the case, the period of incarceration undergone by the petitioner from 18.09.2026, and the fact that custodial interrogation is no longer required as the device data has been processed, this Court is inclined to grant bail to the petitioner.

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6. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties, each for a like sum to the satisfaction of the learned **Judicial Magistrate/Additional Mahila Court, Alandur,** and on further conditions that:

[a] the sureties shall affix his photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure his identity;

[b] the petitioner shall report before the respondent police daily at 10:30 A.M. until further orders;

[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial, and shall not maintain any contact with the witnesses to the occurrence, the officials dealing with the case, or any other person who might be connected to the occurrence;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

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[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23.10.2026

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Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.
2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

To

1. The Judicial Magistrate/Additional Mahila Court, Alandur.

2. The Superintendent, Central Prison, Puzhal, Chennai.

3. The Inspector of Police, Cyber Crime, S-3, Meenambakkam Police Station, Chennai-27.

4. The Public Prosecutor, High Court of Madras.

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